SUPER GIANTS (PVT) LTD
versus
ZIMBABWE REVENUE AUTHORITY

HIGH COURT OF ZIMBABWE
KATIYO J
HARARE; 24 February 2026 & 16 March 2026

Urgent Chamber Application

S Chirorwe, for the applicant
T L Marange, for the respondent

INTRODUCTION

This is an Urgent Court Application filed by the Applicant seeking relief against the Respondent arising from the detention of its trucks and related property. The Respondent entered opposition and raised points *in limine* challenging the procedural validity of the application.

At the commencement of proceedings, the Respondent indicated that it would argue the preliminary objections first, and that should the Court uphold them, the matter ought not to proceed to the merits.

It is from that thesis that this judgment therefore concerns itself strictly and exclusively with the points *in limine* raised by the Respondent. The merits of the dispute are not considered.

BACKGROUND

The Applicant instituted these proceedings under the purported provisions of Rule 59 of the High Court Rules governing urgent chamber applications. The application was accompanied by what was described as a Founding Affidavit and annexures.

The Respondent filed a Notice of Opposition and Opposing Affidavit and subsequently Heads of Argument in which three preliminary objections were raised, namely:

1. That the application is fatally defective for want of compliance with the prescribed form under Rule 59.
2. That there is no valid founding affidavit before the Court.
3. That the procedural defects render the application a nullity incapable of condonation.

The Respondent submitted that the defects are fatal and incurable, and that the matter must be struck off the roll with costs.

POINTS *IN LIMINE*

1. DEFECTIVE FORM OF APPLICATION

The Respondent submits that the application does not comply with Rule 59(1) of the High Court Rules, which provides:

> "A court application shall be in Form No. 23 and shall be supported by one or more affidavits setting out the facts upon which the applicant relies…"

An examination of Form No. 23 shows that it is not a mere technical template but a document containing essential procedural safeguards. It specifically informs the respondent:

- where to file the Notice of Opposition;
- at which seat of the High Court;
- within what time frame.

The Applicant's process fails to indicate at which seat of the High Court the Notice of Opposition was to be filed.

This omission is not cosmetic. It goes to the procedural rights of the Respondent. The principle governing defective notices of motion is well established.

In *Marick Trading (Pvt) Ltd* v *Old Mutual Life Assurance Company and Another* HH 667/15, the Court emphasized that litigants must comply strictly with the Rules of Court and that failure to do so impedes proper adjudication.

The position is even more emphatically stated in *Simross Vintners (Pty) Ltd* v *Vermeulen*; *VRG Africa (Pty) Ltd* v *Walters t/a Trend Litho; Consolidated Credit Corporation (Pty) Ltd* v *Van der Westhuizen 1978 (1) SA 779*, where it was held that the use of an incorrect notice of motion in non–ex parte proceedings rendered the application a

nullity and incapable of condonation. The Court stated that a nullity carries within it "all the elements of irreparability".

The reasoning is compelling. Where a process abrogates or obscures the procedural rights of a respondent, the Court cannot repair the defect retrospectively.

Similarly, in *Hattingh* v *Pienaar 1977* (2) SA 182 (O) it was held that fatally defective compliance with procedural rules cannot be condoned.

The Zimbabwean position was clearly articulated in *Jensen* v *Acavalos* 1993 (1) ZLR 216 (S) at 220A–D where the Supreme Court held:

> "A notice of appeal which does not comply with the rules is fatally defective and invalid. That is to say, it is a nullity… and unless the court is prepared to grant condonation… the appeal must be struck off the roll."

This Court is bound by that authority.

In the present matter, the omission to specify the seat of filing in an urgent application undermines the procedural clarity required by the Rules. It renders the application non-compliant with Form 23.

I am satisfied that this defect is fatal.

2. ABSENCE OF A VALID FOUNDING AFFIDAVIT

The second and more fundamental objection relates to the founding affidavit.

The document purporting to be an affidavit merely states:

"DATED AT HARARE THIS 16TH DAY OF JANUARY 2026"

There is no attestation clause indicating that the document was sworn to or affirmed before a Commissioner of Oaths.

The law on what constitutes a valid affidavit is settled.

In *Prosecutor General* v *Makarichi and Two Others* HH 502/23, the Court defined an affidavit as:

"a statement, in documentary form, sworn to before a commissioner of oaths…"

The Court emphasized that:

- the deponent must swear to the statement;
- the Commissioner must administer the oath;
- the affidavit must reflect that the oath was taken;
- the Commissioner must be identified as such.

The Supreme Court in *Firstel Cellular (Pvt) Ltd* v *NetOne Cellular (Pvt) Ltd 2015* (1) ZLR 94 (S) underscored the importance of proper commissioning and attestation of affidavits.

Likewise, in *Muzanenhamo* v *Gadaga & Ors* HH 65/2006, Gowora JA (as she then was) held that where a document does not demonstrate that it was sworn before a competent commissioner of oaths, it is not an affidavit but a mere written statement.

An application stands or falls on its founding affidavit. This principle was restated in *Milrite Farming (Private) Limited* v *Porusingazi and Others* HH 82/10, where the Court held:

> "The applicant's case stands or falls on averments made in the founding affidavit and not upon subsequent pleadings."

Where there is no valid affidavit, there is no application.

The absence of the words "Sworn to" or "Thus done and sworn to" is not a trivial defect. It goes to the very existence of the affidavit. An unsworn statement cannot found motion proceedings.

Motion proceedings are decided on affidavit evidence. Without an affidavit properly commissioned, there is no evidence before the Court.
This defect renders the application a nullity.

WHETHER THE DEFECTS ARE CURABLE

The authorities cited above make it abundantly clear that a nullity cannot be repaired by Rule 4C or by condonation.

As stated in *Simross Vintners (Pty) Ltd* v *Vermeulen supra,* a nullity carries within it irreparability.

This Court has no jurisdiction to breathe life into a process that is void ab initio.

DISPOSITION

Having found that:

1. The application is fatally defective for non-compliance with Form 23; and
2. There is no valid founding affidavit before the Court;

It follows that there is no proper application for determination.

The matter cannot proceed to the merits.

ORDER

Accordingly, it is ordered that:

1. The points *in limine* raised by the Respondent be and are hereby upheld.
2. The Application be and is hereby struck off the roll.
3. The Applicant shall pay costs at an ordinary scale.

KATIYO J:……..

Chirorwe and Partners, Applicant's Legal Practitioners
ZIMRA Legal Service, Respondent's Legal Practitioners